

Dr. Anoop Awasthi v. State of U.P. — theft-related recovery relegated to clause 6.8

High Court of Judicature at Allahabad · Division Bench · 5 February 2019 · Writ - C No. 3921 of 2019 · **Writ disposed; relegated to clause 6.8; recovery stayed pending EE.**

HEADNOTE

A writ to quash a recovery citation and recovery order for electricity dues, after a theft inspection, FIR and charge-sheet, was not decided on merits. The Allahabad High Court held that the petitioner had a remedy under clause 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, directed a hearing and decision in accordance with law, and kept recovery in abeyance pending that decision. The Court treated the dispute as theft yet pointed the consumer to clause 6.8.

FACTUAL SUMMARY

Dr. Anoop Awasthi petitioned the Allahabad High Court to quash a recovery citation dated 24 September 2018 and a recovery order dated 11 December 2018 demanding Rs 6,93,708 as electricity dues. He pleaded that his wife, Dr. Ruchi Singh, ran a nursing home; the electricity department inspected it, an FIR was lodged and a charge-sheet was filed; the connection stood in the wife's name, yet recovery issued against him. The respondents included the State and Dakshinanchal Vidyut Vitran Nigam Ltd. officers at Jalaun.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

theft-related recovery — remittal to clause 6.8

HOLDING

A writ seeking quashing of a recovery citation and recovery order for electricity dues, arising after a departmental inspection, FIR and charge-sheet described as theft, was disposed of without merits adjudication. The Court held that the petitioner had a remedy under clause 6.8 of the Electricity Supply Code, 2005 by approaching the Executive Engineer, who was directed to hear and decide the representation or objection in accordance with law within fifteen days. Recovery was to remain in abeyance pending that decision, subject to the petitioner appearing as directed. ¶ 1

FLAG Court called the dispute theft yet relegated the petitioner to clause 6.8 (UUE procedure), not the theft clauses.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 24.09.2018 AND RECOVERY ORDER DATED 11.12.2018, INCLUDING WHETHER DUES COULD BE RECOVERED FROM THE PETITIONER WHEN THE CONNECTION STOOD IN HIS WIFE'S NAME

The Court expressly recorded that it had not adjudicated the petitioner's claim on merit. ¶ 1